

		off the hook.' " "For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (<i>Id.</i> at p. 202.) "In both cases, the Act's protections are premised on an express warranty arising from the product's sale." (<i>Ibid.</i>) The Complaint allegations are sufficient. "These causes of action arise out of the warranty obligations of BMW OF NORTH AMERICA, LLC in connection with a vehicle purchased by Plaintiff and for which BMW OF NORTH AMERICA, LLC issued a written warranty." (Compl., ¶ 4.) "Express warranties accompanied the sale of the VEHICLE to Plaintiff by which MANUFACTURER undertook to preserve or maintain the utility or performance of Plaintiff's VEHICLE or to provide compensation if there was a failure in such utility or performance." (Compl., ¶ 8.) Defendant argues these allegations establish the warranty was either the preexisting warranty or not a new car warranty. The California Supreme Court did not limit the protections of Song-Beverly only to cases where a new product warranty was issued as argued by Defendant. Rodriguez ruled the Song-Beverly Act applies to used products where the manufacturer issued a new warranty. (Rodriguez, <i>supra</i>, 17 Cal.5th 189, 202.) Thus, the allegation that Defendant issued a new warranty is sufficient. Further, Defendant's claim Plaintiff must allege evidentiary facts to support his causes of action is not supported. "A cardinal rule of pleading is that only the ultimate facts need be alleged." (<i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606.) Thus, Defendant's Motion is denied.
10	Iwamoto v. Lai 2021-01193481 Motion for summary Judgment Motion to Expunge Lis Pendens Motion for an order re Undertaking Motion for Reconsideration to continue 1/11/27 trial	Motion 1: Motion for Summary Judgment/Adjudication Motion 2: Motion to Expunge Lis Pendens Motion 3: Motion for an Order Requiring an Undertaking Motion 1: Motion for Summary Judgment or Summary Adjudication Defendants' Motion for Summary Judgment or in the alternative Summary Adjudication is CONTINUED to a date to be determined at the 8/3/26 hearing. Defendants Kowen Lai and Tzuchuan Lung as Trustees of the Kowen Lai and Tzuchuan Lung Trust Dated December 8, 2015, move for summary judgment or, in the alternative, summary adjudication of each of the remaining causes of

and strike 3/6/26 stipulation for language.	action on the grounds that this action is barred by res judicata. Code of Civil Procedure, section 437c(h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." To be entitled to a mandatory continuance under section 437c(h), an opposing party's declaration in support of a motion to continue the summary judgment hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (<i>Johnson v. Alameda County Med. Ctr.</i> (2012) 205 Cal.App.4th 521, 532 (<i>Johnson</i>).) When a declaration fails to meet this standard or no declaration is submitted, the court has broad discretionary power to grant a continuance upon a showing of good cause. (<i>Johnson, supra</i>, 205 Cal.App.4th at p. 533.) "Good cause has been found where an attorney's 'dire medical condition' or other special circumstances prevented the completion of discovery." (<i>Ibid.</i>) Plaintiffs' supplemental declaration fails to satisfy the requirements for a mandatory continuance. Namely, Ms. Iwamoto's declaration makes several statements and lists documents that Plaintiffs purportedly do not have. However, neither Ms. Iwamoto's declaration nor Plaintiffs' opposition explain how the statements and missing documents are essential to opposing the motion. For example, Ms. Iwamoto states Plaintiffs "attempted to exercise our lease option about August 2020. Lai kept delaying and putting off our meeting." (Declaration of Susan Iwamoto iso Supp. Opp. ("Supp Decl.") ¶ 5.) Rather than controvert Defendants' evidence, it supports Defendants UMFs 12-14 that a dispute arose between the parties over the existence of and Plaintiffs' ability to exercise a lease option to buy the property. (UMFs 12-14.) As another example, Ms. Iwamoto lists several documents that Plaintiffs contend they need to litigate this action. (Supp.
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	Decl., ¶ 18.) However, she fails to explain why the documents are essential to oppose the motion. Further, as Defendants correctly point out, many of these documents or categories of documents appear in Plaintiffs' own exhibit list during the Lai UD II Trial. (See RJN, Ex. 14.) Ms. Iwamoto's declaration is also contradictory regarding Defendants' production of documents in this action. In one instance she unequivocally states, "Lai has not produced a single document in this action or his action." (Supp. Decl., ¶ 15.) Yet she also states, "He provided a few documents after the court refused to let him take our deposition until he cooperated[,]" (Supp. Decl., ¶ 16); "Defendants have produced barely any discovery whatsoever[,]" (Supp. Decl., ¶ 3); and "They claimed '218 pages' which were not and still have not been properly served" (Supp. Decl., ¶ 4). In sum, Ms. Iwamoto's declaration fails to detail the particular essential facts that may exist to oppose the motion and the specific reasons why they cannot be presented. Nevertheless, given the recent appointment of a discovery referee to adjudicate the large number of discovery motions filed by Plaintiffs, as well as certain procedural issues outlined in the papers, including several unauthorized filings by Plaintiffs as well as Defendants' defective service of their reply and supplemental reply, the court finds good cause to grant a discretionary continuance. Further supplemental briefs to be filed pursuant to the applicable code. Motion 2: Expunge Lis Pendens Defendants' Motion to Expunge Lis Pendens is GRANTED. Defendants Kowen Lai and Tzuchuan Lung as Trustees of the Kowen Lai and Tzuchuan Lung Trust Dated December 8, 2015, move to expunge Plaintiffs' lis pendens on the grounds that (1) it is void and invalid as it does not comply with CCP §§ 405.22 and 405.23, (2) the underlying lawsuit fails to state a real property claim, and (3) Plaintiffs cannot prove the probable validity of the real property claim. Service of Motion Plaintiffs contend the service of motion is defective because the moving papers were sent to a non-existent physical address (i.e., an incorrect box number) and the stipulation to continue the hearing (see ROA 381) did not waive their objections to service. This argument lacks merit mainly. Plaintiffs were represented by counsel at the time and the proof of service indicates email service on Plaintiffs' counsel. Regarding the stipulation, the recitals indicate that the parties disagreed on the issue of proper service of the motion, including Plaintiffs' intent to file motions to quash service of Defendants' MSJ and the instant motion. The recitals then states that the parties "met and conferred in an
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	effort to avoid unnecessary motion practice and delay, and based thereon agree to continue the trial date and pending hearing dates” (ROA 381, p. 2:5-13.) The stipulation is signed by Plaintiffs’ counsel. It is clear that the stipulation was meant to settle the dispute regarding service of the motion. Notably, Plaintiffs never moved to quash the service of the motions and opposes the motion on the merits in its opposition and supplemental opposition. Legal Standard Any party or a non-party having an interest in the property affected by a notice of lis pendens may move for expungement any time after the lis pendens is recorded on several grounds, including the action does not involve a real property claim and the claimant cannot prove the probable validity of the real property claim by a preponderance of the evidence. (Code Civ. Proc., §§ 405.30, 405.31, 405.32.) The motion may be made even while an appeal is pending. (<i>Peery v. Superior Court</i> (1981) 29 Cal.3d 837, 842.) The claimant who filed the lis pendens has the burden of proof where the motion is made on the grounds that the action does not involve a real property claim or the action lacks probable validity. (Code Civ. Proc., §§ 405.30, 405.31, 405.32.) If the claimant fails to meet his or her burden, the court must order that the notice be expunged and may not order an undertaking be given as a condition of expunging the notice. (Code Civ. Proc., §§ 405.31, 405.32.) Service and Filing Requirements Code of Civil Procedure section 405.22 states: Except in actions subject to Section 405.6, the claimant shall, prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll. If there is no known address for service on an adverse party or owner, then as to that party or owner a declaration under penalty of perjury to that effect may be recorded instead of the proof of service required above, and the service on that party or owner shall not be required. Immediately following recordation, a copy of the notice shall also be filed with the court in which the action is pending. Service shall also be made immediately and in the same manner upon each adverse party later joined in the action. Code of Civil Procedure section 405.23 states: “Any notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or owner and a proof of service
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	in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.” “[S]ubstantial compliance satisfies the mailing requirement of section 405.22.” (<i>J&A Mash & Barrel, LLC v. Superior Court of Fresno County</i> (2022) 74 Cal.App.5th 1, 29.) When determining whether the claimant substantially complied with the mailing requirements, courts may consider whether the party seeking to expunge the lis pendens obtained actual knowledge of the lis pendens. (<i>Id.</i> at p. 31.) Defendants contend the lis pendens was served on their attorney at the time at the wrong address. Namely, on or about 5/6/21, the lis pendens was served via certified mail on the Law Offices of Roger E. Nagash at 19800 Macarthur Blvd, Ste 1100, Irvine, CA 92612-2440. However, the correct suite number is 1000. (Kashefipour Decl., ¶¶ 7-8; Nagash Decl. ¶¶ 9, 12, Ex. B.) On or about 5/6/21, Plaintiffs recorded the lis pendens with the Orange County Recorder’s office. (Kashefipour Decl., ¶ 8; Nagash Decl., ¶ 9, Ex. B.) In addition, Defendants are the trustees of the trust that owns the subject property. (Lai Decl., ¶ 3; Nagash Decl., ¶¶ 3-4.) However, they were never served at their proper address. (Nagash Decl., ¶ 12.) Nor has it been filed with the court. (<i>Ibid.</i>) Plaintiffs argue the suit number issue was a minor typographical error that should not defeat the statutory purpose, Nagash himself created the confusion, the lis pendens was actually received, and Defendants’ counsel initially moved to expunge the lis pendens on 6/1/21, shortly after it was served. Even assuming Plaintiffs’ evidence establishes the error was minor, Plaintiffs never served the lis pendens on Defendants, who were the owners of record of the subject property, at the address shown by the latest county assessment roll as required by section 405.22. Nor have Plaintiffs ever filed it with the court: “Immediately following recordation, a copy of the notice shall also be filed with the court in which the action is pending.” (Code Civ. Proc., § 405.22 [emphasis added].) Real Property Claim A real property claim is any cause of action which, if meritorious, would affect title to, or the right of possession of, specific real property; or the use of an easement identified in the pleading (other than one obtained pursuant to statute by any regulatory public utility). (Code Civ. Proc., § 405.4.) The allegations of the complaint determines whether a “real property claim” is involved; no evidence is required. (<i>Urez Corp. v. Sup.Ct.</i> (Keefer) (1987) 190 Cal.App.3d 1141, 1149.)
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	"If the pleading filed by the claimant does not properly plead a real property claim, the lis pendens must be expunged upon motion under CCP 405.31." (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647.) The evidentiary merit of the claim is irrelevant to this analysis. (See <i>Alpha and Omega Development, LP v. Whillock Contracting, Inc.</i> (2011) 200 Cal. App. 4th 656, 664–665.) In this action, Plaintiffs allege they entered into a written lease with Defendants for rental of the subject property, "which was amended with a lease option agreement for the purchase of the property." (Compl., ¶ 5.) Plaintiffs allege they complied with the material terms of the lease and after they altered the premises with authorized repairs and modifications exceeding \$150,000, Defendants commenced serving harassing and unwarranted notices claiming covenant violations intended to unjustly enrich Defendants by increasing the value of the property and purposely and improperly cancel Plaintiffs' lease. (Compl., ¶¶ 6-7.) Defendants committed acts that interfered with Plaintiffs; quite enjoyment of their possessory interest in the property. (Compl., ¶ 8.) The complaint asserts eleven causes of action based on these facts: (1) Retroactive Rent Abatement; (2) Breach of Contract; (3) Specific Performance; (4) Conversion; (5) Permanent Injunction; (6) Fraud; (7) Negligent Misrepresentation; (8) Breach of Covenant of Quiet Enjoyment of the Premises; (9) Elder Abuse; (10) Intentional Infliction of Emotional Distress; and (11) Negligent Infliction of Emotional Distress. The fifth cause of action for permanent injunction has been dismissed after the court granted Defendants' second anti-SLAPP motion. Except for the third cause of action for specific performance, none of the causes of action, if meritorious, would affect title to, or the right of possession of, the subject property because they seek only monetary damages. (See, e.g., <i>Deane v. Superior Court</i> (1985) 164 Cal.App.3d 292, 297 [holding that as the plaintiff's interest in the property was "purely monetary" the lis pendens should be expunged upon the posting of an undertaking].) While the third cause of action might affect title to, or possession of, the subject property if meritorious, it is not properly plead. "To obtain specific performance after a breach of contract, a plaintiff must generally show: (1) the inadequacy of his legal remedy; (2) an underlying contract that is both reasonable and supported by adequate consideration; (3) the existence of a mutuality of remedies; (4) contractual terms which are sufficiently definite to enable the court to know what it is to enforce; and (5) a substantial similarity of the requested performance to that promised in the contract." (<i>Real Estate Analytics, LLC v. Vallas</i> (2008)
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160 Cal.App.4th 463, 472.) "An option is transformed into a contract of purchase and sale when there is an unconditional, unqualified acceptance by the optionee of the offer in harmony with the terms of the option and within the time span of the option contract." (*Petrolink, Inc. v. Lantel Enterprises* (2018) 21 Cal.App.5th 375, 384.)

Here, the complaint does not satisfy the fourth element. The complaint fails to allege any of the terms of the purported lease option purchase agreement. It does not state the option term, the amount of option consideration, the manner of exercise, the purchase price or a mechanism for determining it. The complaint also does not allege the first element, inadequacy of legal remedy. Instead, it only alleges: "Plaintiffs in possession stand ready, willing, and able to purchase the property in accordance with the terms and conditions of the option." (Compl., ¶ 18.)

Therefore, the action does not involve a real property claim. Because Plaintiffs' have not satisfied the requirements of section 405.22 and the complaint does not contain a real property claim, the court need not address Defendants' "probable validity" argument.

Attorney Fees and Costs

A prevailing party on a motion to expunge a lis pendens is entitled to recover "reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.)

Defendants are the prevailing party. Plaintiffs have not established substantial justification for opposing the motion or other circumstances making the imposition of fees and costs unjust.

Defendants seek to recover \$6,736.00 in attorney fees and costs. This amount represents 13.6 hours for researching the records, drafting this motion, reviewing opposition papers and drafting the reply papers at an hourly rate of \$350 for an associate attorney. (Kashefipour Decl., ¶ 10.) The amount also includes 4.5 hours reviewing the motion, preparing for and attending the hearing at an hourly rate \$400 for a partner. (Kashefipour Decl., ¶¶ 1, 11.) The court has evaluated all documents supporting Defendants' fee request and finds the hourly rates and the time spent on the motion is reasonable. Defendants are also entitled to recover the cost of this motion \$60.00, plus \$36.00 for online filing service (moving papers and Reply papers), plus \$85 for recording expungement. (Kashefipour Decl., ¶ 12.)

		The motion is granted. Plaintiffs are ordered to pay Defendants' attorney fees and costs in the amount \$6,736.00 within 30 days. Motion 3: Motion for an Order Requiring an Undertaking Defendants' Motion for an Order Requiring Plaintiffs to File an Undertaking is DENIED. Defendants Kowen Lai and Tzuchuan Lung as Trustees of the Kowen Lai and Tzuchuan Lung Trust Dated December 8, 2015, Defendants move for an order requiring Plaintiffs to post a bond of at least \$280,000 pursuant to CCP § 1030(a). To prevail on the motion, Defendants must show: (1) the plaintiff resides out-of-state or is a foreign corporation; and (2) there is a "reasonable possibility" the moving defendant will prevail in the action. (Code Civ. Proc., § 1030, subd. (a).) Where the court determines that "the plaintiff resides out of the state [and] there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding[,]" then the court "shall order that the plaintiff file the undertaking in an amount specified in the court's order as security for costs and attorney's fees." (Code Civ. Proc., § 1030, subds. (b),(c).) For purposes of CCP § 1030, "resides out of the state" refers to "actual residence, rather than domicile." (<i>Myers v. Carter</i> (1960) 178 Cal.App.2d 622, 626.) To establish this element, Defendants point to a declaration, dated 9/22/25, that plaintiff Susan Iwamoto filed in the consolidated matter (Case No. 30-2021-01229374-CU-BC-CJC), wherein she states: "We moved to Missouri three years ago. We pay Postal Annex to bundle our mail and send it to us." (Kashefipour Decl. ¶3, Ex. A.) In support of their opposition, Ms. Iwamoto filed a declaration, dated 7/21/26, stating she and Mr. Iwamoto "never changed our primary residence from California to Missouri. We maintained California ties throughout, including a California address, California business activity, California banking and insurance, California voting, and a permanent California RV/trailer arrangement." (S. Iwamoto Decl., ¶ 2.) She also states their time in Missouri was "temporary" and they "returned to California in January 2026." (S. Iwamoto Decl., ¶ 3.) "We never changed our primary residence to Missouri. We were traveling for work, while retaining our residence in CA we temporarily leased a location. We were in MO about three months total. We do still travel there we have family." (S. Iwamoto Decl., ¶ 4.)
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		Based on Plaintiffs' evidence, Defendants have not established that Plaintiffs reside out of the state. The motion is denied.
11	Kaiser v. Compass California, III, INC. 2026-01579378 Motion to for leave to file 2 nd Amended complaint	Plaintiffs David Kaiser and Rachel Powell's motion to file a Second Amended Complaint is GRANTED. "The court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . ." (Code Civ. Proc. § 473, subd. (a)(1).) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc. § 576.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (<i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.) Plaintiffs seek to file a SAC to refine and plead with greater specificity the allegations against defendants. Defendants will not suffer any prejudice as a result of the amendment because neither defendant has been served with the summons and complaint, and neither defendant has appeared in the action. Plaintiffs are to electronically file and serve the proposed Second Amended Complaint within 7 days. Plaintiffs to give notice.
12	First Technology Federal Credit Union v. 333 City Blvd, LLC 2025-01462538 Motion to be relieved as counsel of record for Def 333 City Blvd., LLC	The motion of attorney Kimberly Arouh of Buchanan Ingersoll & Rooney LLP to withdraw as attorney of record for Defendant 333 City Blvd LLC is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
13	Tsirtsis v. Pacific Hospital Long Beach 2021-0134325	Defendant Dr. Ian Armstrong's Motion for Summary Judgment/Adjudication is CONTINUED to 8/31/26. On 7/6/26, the Court continued the hearing to provide for Judge De La Cruz to rule on Plaintiff's Motion to Withdraw Deemed Admissions, which was set for hearing on 7/22/26. However, on 7/20/26, Judge De La Cruz continued the